

**CITATION:** *Stevens v. City of Ottawa et al.*, 2025 ONSC 6335  
**COURT FILE NO.:** CV-19-80268  
**DATE:** 2025/11/13

**SUPERIOR COURT OF JUSTICE - ONTARIO**

**RE:** MARCELLE STEVENS, CHRISTOPHER STEVENS, RILEY STEVENS by his  
Litigation Guardian, Christopher Stevens, and ADAM STEVENS, by his  
Litigation Guardian Christopher Stevens

Plaintiffs

**-and-**

THE CITY OF OTTAWA, OTTAWA-CARLETON REGIONAL TRANSIT  
COMMISSION also know as OC TRANSPOR and AISSATOU DIALLO

Defendants

**BEFORE:** Madam Justice Sylvia Corthorn

**COUNSEL:** Megan Hull Jacquin, for the plaintiffs  
Maura Thompson, for the defendants

**HEARD:** In writing

**ENDORSEMENT**

[1] The plaintiffs' claims arise from a January 2019 motor vehicle collision involving an OC Transpo bus that occurred at the Westboro Station, in Ottawa, Ontario. Marcelle Stevens was a passenger on the bus. She suffered catastrophic injuries, including bilateral trans-femoral amputations and residual lower-limb wound issues. The other plaintiffs in the action are Marcelle's husband, Christopher Stevens, and the couple's two sons. Their respective claims are for damages pursuant to s. 61 of the *Family Law Act*, R.S.O. 1990, c. F.3 ("*FLA*").

[2] Adam Stevens was born in November 2013; he was a couple of months shy of his sixth birthday when the collision occurred. Riley Stevens was born in January 2007; he was two weeks away from celebrating his 12th birthday when the collision occurred. Throughout the balance of this endorsement, I refer to the plaintiffs by their respective first names. I do so for ease of reference and with respect.

[3] The plaintiffs' claims were resolved at mediation in April 2022. In March 2023, the plaintiffs filed a motion record for a motion in writing. The relief requested at that time was "approval of the Minutes of Settlement", which address the claims on behalf of the minor plaintiffs, and judgment in accordance with the terms of the Minutes of Settlement.

[4] In *Stevens v. City of Ottawa* (March 21, 2005), Ottawa, CV-19-80268 (Ont. S.C.) ("the 2023 Endorsement"), the court identified deficiencies in the form and content of the documents in the motion record. In response to the 2023 *Endorsement*, the plaintiffs filed a second affidavit from one of their two lawyers of record ("the second affidavit").

[5] Plaintiffs' counsel followed up with the civil administrative staff to ascertain when the second affidavit was provided to me, as the judge seized with the matter. Despite diligent follow-up in that regard, it was not until March 2025 that plaintiffs' counsel were informed that, because of an administrative oversight, the second affidavit had not been brought to my attention. That situation was rectified and the affidavit was ultimately brought to my attention in the summer of 2025.

[6] The delay in bringing the second affidavit to my attention is unfortunate. Given the volume of materials that members of the court's civil administrative staff handle, oversights happen from time to time. The court does not cast any aspersions on the civil administrative staff.

[7] The court understands that the plaintiffs are anxious to complete the litigation and see their involvement in the process at an end. Fortunately, the minor plaintiffs are not prejudiced in any way because of the delay in the determination of the motion. Based on their respective ages and the proposed management of the settlement funds, the minor plaintiffs will not suffer any financial loss because of the passage of more than two years since the motion record was originally filed.

[8] I will deal first with the relief the plaintiffs require pursuant to r. 7.08 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194 (approval of the settlements) and then the relief the plaintiffs require pursuant to r. 7.09 (approval of the proposed management of the settlement funds).

### ***Approval of the Settlements***

[9] Adam and Riley are to each receive \$67,116 in full satisfaction of their respective claims for damages, interest, and costs. That figure is comprised of \$60,000 for damages and pre-judgment interest (net of the statutory deductible of \$20,751.76) and \$7,116 for costs (fees, disbursements, and applicable HST). Plaintiffs' counsel are not delivering an account to either of the minor plaintiffs.

[10] Based on the second affidavit, I draw an inference and find the \$60,000 figure accounts for litigation risk related to the possibility that, if the matter proceeded to trial, the general damages for loss of care, guidance, and companionship awarded to each minor plaintiff would fall below the monetary threshold of \$69,171.36 (and therefore be subject to the statutory deductible of \$20,751.76). I also draw an inference and find that the \$60,000 figure accounts for pre-judgment interest that accrued at the rate of 2.0 percent per year from the date on which the plaintiffs gave notice of their claims to the date on which the settlement was reached.

[11] For the relief pursuant to r. 7.08, the court must determine whether the settlement reached is reasonable and in the best interests of the minor plaintiff: see *Spicer v. Wawanese Mutual Insurance Company*, 2023 ONSC 3221, at para. 14.

[12] The first of the two affidavits filed from one of the plaintiffs' lawyers of record ("the first affidavit") includes an expression of the lawyer's belief that the proposed settlements are "reasonable and in the best interest of the minor Plaintiffs". The expression of that belief, on its own, is not sufficient to permit the court to make the determination required on the motion now before the court.

[13] As grounds for the belief expressed, the lawyer affiant refers to opinions expressed by an expert witness retained to assess the social and emotional ramifications of the collision and Marcelle's injuries and losses on Marcelle's family members, including Adam and Riley. In the substantive text of the first affidavit, the lawyer affiant includes passages from the expert's report; he attaches a copy of that report as an exhibit to the first affidavit.

[14] The opinions expressed by the expert are helpful to the court in understanding the nature and extent of the loss of care, guidance, and companionship experienced by Adam and Riley and of their respective personal struggles in the years since the collision

[15] The first affidavit is, however, lacking in any evidence as to how (a) the quantum of the proposed settlement compares to damages awarded to minor plaintiffs in other actions who suffered losses similar to those suffered by Adam and Riley; and (b) the contribution of litigation risk and other factors as grounds for the belief expressed. In the *2023 Endorsement*, the court reviewed the deficiencies in the evidence. The plaintiffs were required to file additional evidence in support of the relief requested.

[16] In the second affidavit, the lawyer affiant says, “It is difficult to present the Court with ‘comparables’ of FLA awards given that personal injury actions are most often decided by juries and are therefore unreported.” The lawyer affiant refers to the decision of the Court of Appeal for Ontario in *Moore v. 7595611 Canada Corp.*, 2021 ONCA 459, 464 D.L.R. (4th) 475. The lawyer affiant describes that decision as setting the “current high-water mark” for an award of damages to a claimant under the *FLA*. The high-water mark of \$250,000 was awarded to parents whose daughter died after experiencing severe burns, repeated cardiac arrests, and being taken off life support measures.

[17] As a contrast to the high-water mark, the lawyer affiant refers to the decision of Hackland R.S.J. (as he was then) in *Aywas v. Kirwan*, 2010 ONSC 2278. The *FLA* claimants in that case were the children of a pedestrian who was struck by a vehicle and sustained injuries dramatically different from the injuries sustained by Mrs. Stevens. The lawyer affiant’s evidence is that, in today’s dollars, each of the minor plaintiffs in *Aywas* was awarded damages of \$14,067 for loss of care guidance and companionship.

[18] Neither of the decisions cited by the lawyer affiant is of assistance to the court in determining whether the settlements reached on behalf of Adam and Riley are reasonable and in their respective best interests.

[19] In an effort to further explain his continuing failure to provide any reference to awards of damages to minor plaintiffs in other actions who suffered losses similar to those suffered by Adam and Riley, the lawyer affiant relies on the following passage from Firestone R.S.J. in *Spicer*, at para. 14:

When considering whether to approve the proposed settlement, the test is whether the settlement is in the best interests of the person under disability. Approval does not depend on a comparison of what would have been awarded at trial, but rather an assessment of whether the settlement is reasonable and in the party’s benefit given the risks of litigation and the desire of the party to settle. [Citations omitted].

[20] I agree with Firestone R.S.J.’s characterization of the test on a motion of the kind before this court. The expression of the test, as it appears in the above-quoted passage, does not, however, mean that the court does not require some evidence of damages awarded in other cases to plaintiffs who have suffered losses similar to those suffered by the moving party plaintiffs.

[21] To determine whether a settlement is reasonable, the court does not make a direct comparison of the amount of the settlement to the damages awarded in case authority examples. The court does, however, rely on the case authority examples of the quantum of damages awarded; at the same time, the court considers the litigation risk to the plaintiffs before the court and the benefit of the finality that settlement brings to the plaintiffs.

[22] Because the lawyer affiant did not provide the court with the requisite case authority examples, on its own initiative the court reviewed the relevant authorities. The plaintiffs having already encountered delays in getting the second affidavit before the court, it would not have been fair to the plaintiffs to further delay the determination of the motion by repeating the request that the plaintiffs provide the evidence requested in the *2023 Endorsement*.

[23] The decisions reviewed by the court include the following three decisions: (a) *Hornick v. Kochinsky*, 2005 CanLII 13784 (Ont. S.C.); (b) *Musselman et al. v. 875667 Ontario Inc.*, 2010 ONSC 3177, aff'd 2012 ONCA 41; and (c) *Foniciello, et al. v. Bendall and Acculine, et al.*, 2016 ONSC 1119. The injuries suffered by the adult plaintiff in each of those decisions are not identical to those suffered by Marcelle Stevens and the *FLA* claimants were not the exact same age as either Adam or Riley when the adult plaintiff was involved in the subject collision.

[24] The damages awarded to the minor plaintiffs in those three decisions, expressed in today's dollars, range from \$37,500 to \$57,000 – including, in two of the three decisions, after accounting for the applicable statutory deductible. Based on the three decisions cited in the preceding paragraph, I am satisfied that the settlement of the minor plaintiffs' claims for damages and pre-judgment interest (net of the statutory deductible), is reasonable and in their respective best interests.

[25] The \$60,000 for the minor plaintiffs before this court does not include any amount for the cost of future care. In the second affidavit, an explanation is provided regarding the Statutory Accident Benefits the minor plaintiffs have available to them. In addition, the minor plaintiffs will, for several years, have collateral benefits available to them through their parents' respective employee benefits coverage.

[26] There is no evidence before the court as to the expenses incurred to date, including through benefits coverage, for psychological or other forms of treatment that either of the minor plaintiffs has accessed. Based on the two affidavits from plaintiffs' counsel, I draw an inference and find that the adult plaintiffs (a) anticipate that the treatment, if any that either of the minor plaintiffs requires over time, will be covered by the combination of the Statutory Accident Benefits and employee benefits; and (b) understand that any expenses not covered by either form of benefit will be an out-of-pocket expense for the adult plaintiffs or the minor plaintiffs (the latter, once they reach the appropriate age).

[27] With plaintiffs' counsel choosing not to deliver an account to either of the minor plaintiffs, the costs portion of the settlement (i.e., \$7,116) represents additional funds from which to pay for any future treatment the minor plaintiffs may require.

[28] For the reasons set out above, I find that the settlement of the minor plaintiffs' claims is reasonable and in their respective best interests.

[29] I turn next to the proposed management of the settlement funds.

***The Proposed Structured Settlements***

[30] The proposal is for the settlement funds for each of the minor plaintiffs to be placed in a structure. The payment schedules for each of the proposed structures are exhibits to the first affidavit. The fixed, non-indexed payments will begin when the minor plaintiff turns 21 and continue to age 30. All payments are guaranteed. Neither structure provides for any lump sum payment at any time.

[31] Riley will receive monthly payments in the amount of \$883.41 from January 23, 2028 to and including December 23, 2036. The total payout to Riley will be \$95,408.28, with that amount fully guaranteed. There is no cost to the guarantee for Riley's payments.

[32] Adam will receive monthly payments in the amount of \$1,117.83 from November 5, 2034 to October 5, 2043. The total payout to Adam will be \$120,727.80, with that amount fully guaranteed. The cost of the guarantee for Adam's payments is \$26.43 per month and is being paid from Adam's settlement funds. That cost of the guarantee does not significantly impact the monthly amount or the total amount to be paid to Adam. I am satisfied that it is reasonable for Adam to incur the cost of the guarantee.

[33] In summary, the proposed management of the settlement funds is approved.

***Disposition***

[34] The settlements of the claims of the minor plaintiffs and the proposed management of the settlement funds for each of Adam and Riley are approved.

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Madam Justice Sylvia Corthorn

**Released:** November 13, 2025

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**B E T W E E N:**

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CHRISTOPHER STEVENS, RILEY  
STEVENS by his Litigation Guardian,  
Christopher Stevens, and ADAM  
STEVENS, by his Litigation Guardian  
Christopher Stevens, Plaintiffs

**-and-**

THE CITY OF OTTAWA, OTTAWA-  
CARLETON REGIONAL TRANSIT  
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**COUNSEL:** Megan Hull Jacquin, for the plaintiffs  
Maura Thompson, for the defendants

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**ENDORSEMENT**

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Madam Justice Sylvia Corthorn